

Compliance Gap Report

Phi Pavilion

Sector: Hospitality

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Executive Summary

34

OBLIGATIONS ASSESSED

22

GAPS IDENTIFIED

19

CRITICAL GAPS

What is an obligation? A specific legal requirement under India's Digital Personal Data Protection Act 2023 and Rules 2025 — for example, publishing a privacy notice, obtaining valid consent, or appointing a grievance officer. The questionnaire asks about your business practices; this report shows which requirements apply to you and whether you meet them.

Regulatory Timeline

Phase	Date	Requirement
Phase I	2025-11-13	Data Protection Board of India established
Phase II	2026-11-13	Consent Manager provisions become effective
Phase III	2027-05-13	All other substantive compliance obligations become effective

Prioritized Action Plan

Before Nov 13, 2026 (by 2026-11-13)

- Review Consent Manager provisions and whether registration applies to your use case
- Assess and update vendor / Data Processor contracts
- Publish or update privacy notice with grievance officer contact

Before May 13, 2027 (full compliance) (by 2027-05-13)

- Define Board notification workflow per Section 8(6)..
- Define individual notification workflow..
- Define retention limits and erasure triggers per Rule 5.

- Appoint grievance officer per Section 8(9) and 14.
- Publish notice with all Rule 3 elements.
- Publish notice before or at point of consent.
- Create breach playbook with roles and timelines.
- Publish DPO or authorised contact per Section 8(9).
- Implement reasonable safeguards per Section 8(5) and Rule 12..
- Appoint and publish grievance officer per Section 14.
- Implement logging with one-year retention per Rule 12..
- Publish verification method per Rule 8/9.
- Monitor processor compliance per Section 8(2)..
- Set timelines not exceeding 90 days for grievances.
- Begin annual audit preparation per Section 10..
- Begin DPIA programme preparation per Section 10..
- Begin DPO appointment preparation per Section 10..
- Implement 48-hour notice before Third Schedule deletion.
- Enable Data Principals to nominate per Section 15.

Legal Source Documents

Primary and secondary sources used to ground this assessment.

Digital Personal Data Protection Act, 2023 (primary)
Ministry of Electronics and IT (MeitY), Government of India
[Download PDF](#) · [Official source](#)

Digital Personal Data Protection Rules, 2025 (primary)
Ministry of Electronics and IT (MeitY), Government of India
[Download PDF](#) · [Official source](#)

DPDP Rules 2025 (English text mirror) (primary)
dpdpa.com (mirror of notified Rules)
[Download PDF](#) · [Official source](#)

PIB Press Release — DPDP Rules 2025 Notification (primary)
Press Information Bureau, Government of India
[Download PDF](#) · [Official source](#)

DSCI — DPDP Rules 2025 (Rule-to-Section Index) (secondary)
Data Security Council of India (DSCI)
[Download PDF](#) · [Official source](#)

Questionnaire Responses

Complete record of your assessment answers for reference. Items without a recorded response are marked Not answered. (37 of 38 responses recorded)

Business profile

In what form do you collect or store personal data?

Response: Digital only (forms, apps, databases)

Approximately how many individuals' data do you process per year?

Response: 10,000 – 100,000

Data collection

Do you collect personal data from customers, guests, patients, employees, or website visitors?

Response: Yes

What types of personal data do you collect?

Response: Name, phone, email, address, Government ID (Aadhaar, passport, etc.)

Do you process personal data of employees or contractors?

Response: Yes

What is your primary legal basis for processing personal data?

Response: Consent (primary basis)

Is the specific purpose for each type of data collected documented?

Response: Yes — for all data collected

If you rely on legitimate uses (Section 7), are they documented?

Response: We rely on consent only

If you collect children's data (under 18), how is parental consent obtained?

Response: We do not collect children's data

Do you use behavioural tracking or targeted advertising directed at users under 18?

Response: We do not process children's data

If you use CCTV, do you have notice/signage about video surveillance?

Response: No notice or signage

Notice & consent

Do you publish a privacy notice?

Response: No

Which elements does your privacy notice include?

Response: Not answered

How do you obtain consent before collecting personal data?

Response: Explicit opt-in (unchecked checkbox, signed form)

Do you maintain records of when and how consent was given?

Response: Yes — complete records

How can individuals withdraw consent?

Response: Same ease as consent (web, email, account settings)

Have you assessed Consent Manager provisions (effective Nov 2026)?

Response: Not yet assessed

Data lifecycle

Do you have processes to keep personal data accurate and up to date?

Response: Yes — formal process

Do you have a documented data retention and deletion policy?

Response: No policy

Data Principal rights

Can individuals request access to their personal data?

Response: Yes — documented process

Can individuals request correction of inaccurate data?

Response: Yes — documented process

Can individuals request erasure of their data?

Response: Yes — documented process

Have you appointed a grievance officer and published their contact?

Response: Not appointed

Can Data Principals nominate someone to exercise rights on their behalf?

Response: Not supported

Is your method for verifying identity before fulfilling rights requests published?

Response: No published method

Are response timelines for rights/grievance requests defined (max 90 days)?

Response: No defined timelines

Transparency & contact

Is your business contact or DPO details published on website/app?

Response: Not published

Processors & transfers

Do third-party vendors process personal data on your behalf?

Response: Yes

Do you have written Data Processor contracts with all vendors?

Response: Yes — all relevant vendors

Do you monitor processor compliance with data protection obligations?

Response: No processors

Is personal data stored or processed outside India?

Response: No

Have you verified destination countries are not on the government restricted list?

Response: No cross-border transfers

Security & breach

Which security measures are in place?

Response: Role-based access controls

Do you have a documented data breach response plan?

Response: No

Does your breach plan include immediate notification to the Data Protection Board?

Response: No breach plan

Does your breach plan include notifying affected Data Principals?

Response: No breach plan

Employment & SDF

Are privacy notice and security safeguards applied to employee data?

Response: Yes — same safeguards as customer data

If designated a Significant Data Fiduciary, are you prepared (DPO, DPIA, audit)?

Response: Not started

Detailed Obligation Assessment

Obligations assessed from your answers. Items marked Not Answered need questionnaire input.

Questions and obligations are separate: several questions can inform one obligation, and one obligation may need answers to multiple questions.

For each obligation below:

- Requirement = What does the law say?
- Assessment = Where do we stand?
- Recommended Action = What should we do now?

Security & breach

Breach notification to Data Protection Board

NOT MET

Section 8(6) · Rule 13 · Due 2027-05-13

Requirement: Notify Board without undue delay; detailed report within 72 hours.

Assessment: No Board breach notification process.

Recommended Action: Define Board notification workflow per Section 8(6)..

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

"e inserted; and (c) in section 87, in sub-section (2), clause (ob) shall be omitted. (3) In section 8 of the Right to Information Act, 2005, in sub-section (1), for clause (j), the following clause shall be substituted, namely:— "(j) information which relates to personal information;". 21 of 2000. 27 of 2008. 21 of 2000. 39 of 1970. 22 of 2005. [Page 21] SEC. 1] THE GAZETTE OF INDIA EXTRAORDINA..."

Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Breach notification to affected Data Principals

NOT MET

Section 8(6) · Rule 13 · Due 2027-05-13

Requirement: Inform affected individuals in clear language about breach, impact, and remedial steps.

Assessment: No Data Principal breach notification process.

Recommended Action: Define individual notification workflow..

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Data quality & lifecycle

Data retention limits and erasure when purpose ends

NOT MET

Section 8(4) · Section 12 · Rule 5 · Third Schedule · Due 2027-05-13

Requirement: Erase data when purpose served, consent withdrawn, or erasure requested; follow Third Schedule timelines.

Assessment: No retention or erasure policy.

Recommended Action: Define retention limits and erasure triggers per Rule 5.

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Transparency & contact

Grievance officer appointed and contact published

NOT MET

Section 8(9) · Section 14 · Rule 9 · Due 2027-05-13

Requirement: Grievance redressal system published on website/app.

Assessment: No grievance officer appointed.

Recommended Action: Appoint grievance officer per Section 8(9) and 14.

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Notice & consent

Notice contains all required elements (Rule 3)

NOT MET

Section 5 · Rule 3 · Due 2027-05-13

Requirement: Notice must include specific data, purposes, goods/services provided, withdrawal, rights, and Board complaint route.

Assessment: No privacy notice to assess.

Recommended Action: Publish notice with all Rule 3 elements.

"e entitled to encashment of earned leave standing to her credit, subject to such conditions and in like manner as are applicable to a Government servant under rule 38-A, sub-rules (1) and (2) and sub-clauses (i) and (ii) of clause (a) of sub-rule (6) of rule 39, rule 39-A and rule 39 -C of the Leave Rules, subject to the maximum extent of encashment under any of the said rules, other than rule ..."

Source: Digital Personal Data Protection Rules, 2025 — [Download source PDF](#)

"of sub-rule (1) of rule 26, rules 27, 29, 30 and 40 to 43 -C of the Central Civil Services (Leave) Rules, 1972 (hereinafter referred to as "Leave Rules"). (3) Leave shall be subject to the conditions applicable to a Government servant under rules 7 to 11 and 22 to 25 of the Leave Rules, and the Central Government may, if satisfied that the operation of any of the said rules causes undue hardshi..."

Source: Digital Personal Data Protection Rules, 2025 — [Download source PDF](#)

Notice to Data Principal before consent

NOT MET

Section 5 · Rule 3 · Due 2027-05-13

Requirement: Clear notice covering data collected, purpose, rights, grievance contact, and withdrawal.

Assessment: No privacy notice published.

Recommended Action: Publish notice before or at point of consent.

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

"aw her consent to the Data Fiduciary through a Consent Manager. (8) The Consent Manager shall be accountable to the Data Principal and shall act on her behalf in such manner and subject to such obligations as may be prescribed. (9) Every Consent Manager shall be registered with the Board in such manner and subject to such technical, operational, financial and other conditions as may be prescrib..."

Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Security & breach

Personal data breach response plan

NOT MET

Section 8(6) · Rule 13 · Due 2027-05-13

Requirement: Documented plan for detecting, containing, and responding to breaches.

Assessment: No breach response plan.

Recommended Action: Create breach playbook with roles and timelines.

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Transparency & contact

Publication of business contact / DPO details

NOT MET

Section 8(9) · Rule 9 · Rule 14 · Due 2027-05-13

Requirement: Display contact of DPO or authorised person on website/app for data processing queries.

Assessment: Business contact not published.

Recommended Action: Publish DPO or authorised contact per Section 8(9).

"e entitled to encashment of earned leave standing to her credit, subject to such conditions and in like manner as are applicable to a Government servant under rule 38-A, sub-rules (1) and (2) and sub-clauses (i) and (ii) of clause (a) of sub-rule (6) of rule 39, rule 39-A and rule 39 -C of the Leave Rules, subject to the maximum extent of encashment under any of the said rules, other than rule ..."

Source: Digital Personal Data Protection Rules, 2025 — [Download source PDF](#)

"to be affected thereby, before the expiry of the period of forty -five days from the date on which copies of the Official Gazette containing the said notification were made available to public; And whereas copies of the said Official Gazette were made available to the public on the 3rd January, 2025; And whereas objections and suggestions were received from the public in respect of the said dra..."

Source: Digital Personal Data Protection Rules, 2025 — [Download source PDF](#)

Security & breach

Reasonable security safeguards

NOT MET

Section 8(5) · Rule 12 · Due 2027-05-13

Requirement: Encryption, access controls, logging, backups, and organisational measures.

Assessment: Insufficient security safeguards.

Recommended Action: Implement reasonable safeguards per Section 8(5) and Rule 12..

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

"data under sub-section (3) of section 12; (o) the period within which the Data Fiduciary shall respond to any grievances under sub-section (2) of section 13; Consistency with other laws. Bar of jurisdiction. Power to make rules. [Page 19] SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 19 (p) the manner of nomination of any other individual by the Data Principal under sub-section (1) of section 14;..."

Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Data Principal rights

Right of grievance redressal

NOT MET

Section 14 · Rule 9 · Due 2027-05-13

Requirement: Grievance mechanism responding within reasonable time (Rules: up to 90 days).

Assessment: No grievance redressal mechanism.

Recommended Action: Appoint and publish grievance officer per Section 14.

"data under sub-section (3) of section 12; (o) the period within which the Data Fiduciary shall respond to any grievances under sub-section (2) of section 13; Consistency with other laws. Bar of jurisdiction. Power to make rules. [Page 19] SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 19 (p) the manner of nomination of any other individual by the Data Principal under sub-section (1) of section 14;..."

Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Data quality & lifecycle

Deletion upon consent withdrawal

PARTIALLY MET

Section 6(4) · Section 8(4) · Rule 4 · Rule 5 · Due 2027-05-13

Requirement: Cease processing and erase data within reasonable time after consent withdrawal.

Assessment: Withdrawal exists but erasure workflow may be incomplete.

Recommended Action: Automate erasure within reasonable time after withdrawal.

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Notice & consent

Consent is free, specific, informed, and unambiguous

MET

Section 6(1) · Rule 4 · Due 2027-05-13

Requirement: Consent obtained through clear affirmative action; not bundled or implied.

Assessment: Explicit affirmative consent reported.

Recommended Action: Avoid pre-ticked boxes; keep consent separate from T&C.

"e entitled to encashment of earned leave standing to her credit, subject to such conditions and in like manner as are applicable to a Government servant under rule 38-A, sub-rules (1) and (2) and sub-clauses (i) and (ii) of clause (a) of sub-rule (6) of rule 39, rule 39-A and rule 39 -C of the Leave Rules, subject to the maximum extent of encashment under any of the said rules, other than rule ..."

Source: Digital Personal Data Protection Rules, 2025 — [Download source PDF](#)

"data under sub-section (3) of section 12; (o) the period within which the Data Fiduciary shall respond to any grievances under sub-section (2) of section 13; Consistency with other laws. Bar of jurisdiction. Power to make rules. [Page 19] SEC. 1] THE GAZETTE OF INDIA EXTRAORDINARY 19 (p) the manner of nomination of any other individual by the Data Principal under sub-section (1) of section 14;..."

Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Consent withdrawal as easy as giving consent

MET

Section 6(4) · Rule 3 · Rule 4 · Due 2027-05-13

Requirement: Withdrawal mechanism at least as accessible as consent; downstream processors notified.

Assessment: Accessible withdrawal mechanism in place.

Recommended Action: Ensure withdrawal triggers erasure workflow.

"e entitled to encashment of earned leave standing to her credit, subject to such conditions and in like manner as are applicable to a Government servant under rule 38-A, sub-rules (1) and (2) and sub-clauses (i) and (ii) of clause (a) of sub-rule (6) of rule 39, rule 39-A and rule 39 -C of the Leave Rules, subject to the maximum extent of encashment under any of the said rules, other than rule ..."

Source: Digital Personal Data Protection Rules, 2025 — [Download source PDF](#)

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Lawful processing

Lawful basis — valid consent for processing

MET

Section 4 · Section 6 · Rule 3 · Rule 4 · Due 2027-05-13

Requirement: Personal data processed only for lawful purpose with free, specific, informed, unambiguous consent.

Assessment: Explicit opt-in consent mechanism in place.

Recommended Action: Maintain consent records and purpose-specific notices.

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

"instruments under sub-section (1) of section 23; (u) the terms and conditions of appointment and service of officers and employees of the Board under section 24; (v) the techno-legal measures to be adopted by the Board under sub-section (1) of section 28; (w) the other matters under clause (d) of sub-section (7) of section 28; (x) the form, manner and fee for filing an appeal under sub-section ..."

Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Processing of digital personal data within scope

MET

Section 3 · · Due 2027-05-13

Requirement: Act applies to digital personal data processed in India or offered goods/services to persons in India.

Assessment: Digital personal data processing confirmed.

Recommended Action: Maintain inventory of all digital data flows.

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

"rescribed. CHAPTER III RIGHTS AND DUTIES OF DATA PRINCIPAL 11. (1) The Data Principal shall have the right to obtain from the Data Fiduciary to whom she has previously given consent, including consent as referred to in clause (a) of section 7 (hereinafter referred to as the said Data Fiduciary), for processing of personal data, upon making to it a request in such manner as may be prescribed, —..."

Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Purpose limitation

MET

Section 4(1) · Section 6(1) · Rule 3 · Due 2027-05-13

Requirement: Data processed only for purpose consented to or permitted under legitimate use.

Assessment: Processing purposes documented for all data collected.

Recommended Action: Review when adding new data types or uses.

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

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Security & breach

Access logging and one-year log retention

NOT MET

Section 8(5) · Rule 12 · Due 2027-05-13

Requirement: Logs retained for at least one year to detect unauthorised access.

Assessment: No access/activity logging.

Recommended Action: Implement logging with one-year retention per Rule 12..

"e entitled to encashment of earned leave standing to her credit, subject to such conditions and in like manner as are applicable to a Government servant under rule 38-A, sub-rules (1) and (2) and sub-clauses (i) and (ii) of clause (a) of sub-rule (6) of rule 39, rule 39-A and rule 39 -C of the Leave Rules, subject to the maximum extent of encashment under any of the said rules, other than rule ..."

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Data Principal rights

Identity verification for rights requests

NOT MET

Section 11 · Section 12 · Section 13 · Rule 8 · Rule 9 · Due 2027-05-13

Requirement: Published method and identifiers required to verify Data Principal before fulfilling requests.

Assessment: No identity verification for rights requests.

Recommended Action: Publish verification method per Rule 8/9.

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Processors & transfers

Oversight and monitoring of Data Processors

NOT MET

Section 8(2) · Rule 6 · Rule 12 · Due 2027-05-13

Requirement: Reasonable steps to ensure processors comply with security and processing obligations.

Assessment: No processor oversight.

Recommended Action: Monitor processor compliance per Section 8(2)..

"e entitled to encashment of earned leave standing to her credit, subject to such conditions and in like manner as are applicable to a Government servant under rule 38-A, sub-rules (1) and (2) and sub-clauses (i) and (ii) of clause (a) of sub-rule (6) of rule 39, rule 39-A and rule 39 -C of the Leave Rules, subject to the maximum extent of encashment under any of the said rules, other than rule ..."

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Data Principal rights

Rights requests handled within reasonable timelines

NOT MET

Section 11 · Section 12 · Section 13 · Section 14 · Rule 8 · Rule 9 · Due 2027-05-13

Requirement: Documented timelines for access, correction, erasure, and grievance responses.

Assessment: No defined timelines for rights requests.

Recommended Action: Set timelines not exceeding 90 days for grievances.

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Notice & consent

Consent Manager provisions readiness

PARTIALLY MET

Section 6(9) · Rule 4 · Due 2026-11-13

Requirement: Consent Manager framework effective Nov 2026; assess integration if applicable.

Assessment: Consent Manager provisions not yet assessed.

Recommended Action: Review Rule 4 and Section 6(9) before Nov 13, 2026.

"ain a website or app, or both, as the primary means through which a Data Principal may access the services provided by the Consent Manager. 6. The Consent Manager shall not sub -contract or assign the performance of any of its obligations under the Act and these rules. 7. The Consent Manager shall take reasonable security safeguards to prevent personal data breach. 8. The Consent Manager shall ..."

Source: Digital Personal Data Protection Rules, 2025 — [Download source PDF](#)

"ion, the Board may make such inquiry as it may deem fit to satisfy itself regarding fulfilment of the conditions set out in Part A of First Schedule, and if it— (a) is satisfied, register the applicant as a Consent Manager, under intimation to the applicant, and publish on its website the particulars of such Consent Manager; or (b) is not satisfied, reject the application and communicate the re..."

Source: Digital Personal Data Protection Rules, 2025 — [Download source PDF](#)

Consent records maintained

MET

Section 6 · Rule 4 · Due 2027-05-13

Requirement: Ability to demonstrate when and how consent was given.

Assessment: Consent records maintained.

Recommended Action: Retain records demonstrating consent scope and timing.

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Employment & special cases

Employee personal data safeguards

MET

Section 7(c) · Section 8 · Rule 5 · Due 2027-05-13

Requirement: Safeguards for employee data processed under legitimate use for employment purposes.

Assessment: Employee data safeguards in place.

Recommended Action: Apply notice and security to employee data.

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Data quality & lifecycle

Reasonable efforts to ensure data accuracy and completeness

MET

Section 8(3) · Due 2027-05-13

Requirement: Data Fiduciary must make reasonable efforts to ensure personal data is accurate and complete.

Assessment: Data accuracy measures in place.

Recommended Action: Periodic review of critical data fields.

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Data Principal rights

Right of access — summary of personal data and processing

MET

Section 11 · Rule 8 · Rule 9 · Due 2027-05-13

Requirement: Data Principal may obtain summary of personal data and processing activities.

Assessment: Access request process documented.

Recommended Action: Publish how to submit access requests.

"e entitled to encashment of earned leave standing to her credit, subject to such conditions and in like manner as are applicable to a Government servant under rule 38-A, sub-rules (1) and (2) and sub-clauses (i) and (ii) of clause (a) of sub-rule (6) of rule 39, rule 39-A and rule 39 -C of the Leave Rules, subject to the maximum extent of encashment under any of the said rules, other than rule ..."

Source: Digital Personal Data Protection Rules, 2025 — [Download source PDF](#)

"rescribed. CHAPTER III RIGHTS AND DUTIES OF DATA PRINCIPAL 11. (1) The Data Principal shall have the right to obtain from the Data Fiduciary to whom she has previously given consent, including consent as referred to in clause (a) of section 7 (hereinafter referred to as the said Data Fiduciary), for processing of personal data, upon making to it a request in such manner as may be prescribed, —..."

Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Right of correction and updating of personal data

MET

Section 12 · Rule 8 · Due 2027-05-13

Requirement: Process to correct inaccurate or misleading personal data.

Assessment: Correction process documented.

Recommended Action: Train staff on correction workflows.

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Right of erasure

MET

Section 13 · Rule 8 · Due 2027-05-13

Requirement: Process to erase personal data when consent withdrawn or no longer necessary.

Assessment: Erasure process documented.

Recommended Action: Test erasure across all systems and processors.

"under sub-section (2) of section 5; (c) the manner of accountability and the obligations of Consent Manager under sub-section (8) of section 6; (d) the manner of registration of Consent Manager and the conditions relating thereto, under sub-section (9) of section 6; (e) the subsidy, benefit, service, certificate, licence or permit for the provision or issuance of which, personal data may be pr..."

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Processors & transfers

Written contract with Data Processors

MET

Section 8(2) · Rule 6 · Due 2027-05-13

Requirement: Contract specifying purpose, security obligations, and deletion requirements.

Assessment: Written processor contracts in place.

Recommended Action: Review contracts annually.

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Significant Data Fiduciary

Annual data protection audit (if SDF)

NOT MET

Section 10 · Rule 11 · Due 2027-05-13

Requirement: SDF must have annual audit by independent auditor.

Assessment: SDF readiness: annual audit not started.

Recommended Action: Begin annual audit preparation per Section 10..

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Data Protection Impact Assessment (if SDF)

NOT MET

Section 10 · Rule 11 · Due 2027-05-13

Requirement: SDF must conduct periodic DPIA for processing with risk to Data Principals.

Assessment: SDF readiness: DPIA programme not started.

Recommended Action: Begin DPIA programme preparation per Section 10..

"sub-section (1) of section 9; (j) the classes of Data Fiduciaries, the purposes of processing of personal data of a child and the conditions relating thereto, under sub-section (4) of section 9; (k) the other matters comprising the process of Data Protection Impact Assessment under sub-clause (i) of clause (c) of sub-section (2) of section 10; (l) the other measures that the Significant Da..."

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Data Protection Officer appointment (if SDF)

NOT MET

Section 10 · Rule 11 · Rule 14 · Due 2027-05-13

Requirement: SDF must appoint DPO based in India with prescribed qualifications.

Assessment: SDF readiness: DPO appointment not started.

Recommended Action: Begin DPO appointment preparation per Section 10..

"[Page 1] 1 Summary - Digital Personal Data Protection Rules, 2025 The Ministry of Electronics and Information Technology (MeitY) notified the Digital Personal Data Protection Rules, 2025 (DPDP Rules) on November 13 th, 2025. The rules were framed under the Digital Personal Data Protection Act, 2023 (DPDPA) and are now operationalising India's first data governance legislation in a phased manner..."

Source: DSCI — DPDP Rules 2025 (Rule-to-Section Index) — [Download source PDF](#)

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Source: Digital Personal Data Protection Rules, 2025 — [Download source PDF](#)

Data quality & lifecycle

Pre-erasure notification to Data Principal (48 hours)

NOT MET

Section 8(7) · Rule 5 · Due 2027-05-13

Requirement: Notify Data Principal at least 48 hours before deletion under Third Schedule unless they act to continue purpose.

Assessment: No process for pre-erasure notification.

Recommended Action: Implement 48-hour notice before Third Schedule deletion.

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Data Principal rights

Right of nomination

NOT MET

Section 15 · Rule 9 · Due 2027-05-13

Requirement: Data Principal may nominate another individual to exercise rights in event of death or incapacity.

Assessment: Nomination right not supported.

Recommended Action: Enable Data Principals to nominate per Section 15.

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

Significant Data Fiduciary

Significant Data Fiduciary (SDF) designation assessment

PARTIALLY MET

Section 10 · Rule 11 · Due 2027-05-13

Requirement: Assess whether government may designate you as SDF based on volume, sensitivity, and risk.

Assessment: May qualify for Significant Data Fiduciary designation.

Recommended Action: Monitor government notifications; prepare enhanced obligations.

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Source: Digital Personal Data Protection Act, 2023 — [Download source PDF](#)

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